

ANNEX 2 – DATA PROTECTION AGREEMENT (“DPA”)

This Data Protection Agreement (the “DPA”) is annexed to the Brevo [General Terms and Conditions](#) (the “General Terms and Conditions”) and its purpose is to define the respective roles and obligations of each Party with respect to the processing of personal data by Brevo, either (i) as data processor, on behalf of Customer, the data controller; or (ii) as sub-processor on behalf of Customer, the data processor. In the second case (ii), it is agreed that the instructions contained in this DPA are indirectly transmitted to Brevo through the Customer.

1. DEFINITIONS

- 1.1. Capitalized terms not defined in this DPA shall have the meaning given to them in the General Terms and Conditions.
- 1.2. Where terms defined respectively in the GDPR appear in this DPA, they shall be understood as in the GDPR.
- 1.3. This DPA shall be read and interpreted in light of the provisions of the GDPR. It shall not be interpreted in a manner contrary to the rights and obligations under the GDPR or in a manner that infringes the fundamental rights or freedoms of the data subjects.
- 1.4. In the event of any inconsistency between this DPA and the provisions of the General Terms and Conditions, this DPA shall prevail.

2. DESCRIPTION OF THE PROCESSING OPERATIONS AND ROLE OF THE PARTIES

- 2.1. All the Services require at least the processing of Customer Data and the following data relating to the User: identification and contact data (name, address, title, contact details, user name); information relating to the organization (geographical location, website), sending information (e-mail address, IP address, date and time) and log of use of the Service.
- 2.2. The details of the processing operations, including the categories of personal data and the purposes of the processing for which personal data is processed on behalf of Customer, are specified in the applicable Additional Terms.

3. GENERAL OBLIGATIONS OF THE PARTIES

3.1. Brevo's Obligations

As a data processor, Brevo undertakes to:

- i. comply with the Data Protection Regulation;
- ii. process Customer's personal data only for the purposes of providing the data processing services under this DPA;
- iii. process Customer's personal data in accordance with Customer's lawful and documented instructions. If Brevo considers that an instruction constitutes a breach of the Data Protection Regulation, it shall immediately inform Customer. In addition, if Brevo is required to transfer data to a third country or to an international organization under the law of the Union or the law of the Member State to which it is subject, it shall inform Customer of this legal obligation prior to processing, unless the law concerned prohibits such information on important grounds of public interest;
- iv. ensure the confidentiality of Customer's personal data; and
- v. ensure that the persons authorized to process Customer's personal data are committed to respecting confidentiality and receive the necessary training on the protection of personal data.

3.2. Customer's Obligations

Customer is solely responsible for complying with the obligations incumbent on the data controller under data protection laws. Whether acting as data controller or data processor, Customer is responsible for the performance of its obligations under this DPA and shall:

- i. comply with the Data Protection Regulation and any laws applicable to Customer in connection with the use of the Services;
- ii. provide Brevo with Customer's personal data necessary for the processing;
- iii. document in writing any instructions regarding the processing of data by Brevo;
- iv. ensure, beforehand and throughout the processing, that Brevo complies with the obligations set out in the GDPR;
- v. supervise processing, including conducting audits and inspections of Brevo; and
- vi. not include in Customer Data any "sensitive" personal data (special category of personal data) within the meaning of Articles 9 and 10 of the GDPR.

4. INFORMATION AND RIGHTS OF DATA SUBJECTS

- 4.1.** It is Customer's responsibility to provide information to the data subjects about the processing operations at the time of collection of their personal data and to obtain all consents (where required) necessary under the Data Protection Regulation for Brevo to process Customer Data and provide the Services in accordance with the Agreement.
- 4.2.** Brevo undertakes to assist Customer, by means of appropriate technical and organizational measures, in fulfilling its obligation to respond to requests made by data subjects to exercise their rights under the Data Protection Regulation.
- 4.3.** In the event that such a request relating to Customer is made directly to Brevo, Brevo shall promptly inform Customer thereof and shall only act upon Customer's written instruction, subject to applicable regulations. Any operation carried out by Brevo in the context of a request to exercise a right may, where applicable, give rise to additional invoicing, taking into account in particular the technical investigations carried out at Customer's request.
- 4.4.** Notwithstanding the foregoing, Brevo may respond directly to a data subject's request if (i) the request is an automatic unsubscribe from electronic communications or (ii) the request relates to an unsolicited communication, a prohibited use of the Services or a potential breach of this Agreement by Customer or any of Brevo's customers. In both cases, Brevo will carry out the request of the data subject without the prior approval of Customer. In case (ii), Brevo may suspend the possibility of sending any electronic communication to the domain of the data subject.

5. SECURITY

- 5.1.** Brevo specifically undertakes to implement appropriate technical and organizational security measures to ensure a level of security appropriate to the risk in accordance with the applicable Data Protection Regulation.
- 5.2.** The security measures implemented by Brevo under this DPA are detailed in Brevo's Technical and Organizational Measures detailed in Schedule 2 to this DPA. Customer acknowledges that Brevo may update its technical and organizational security measures, in particular in order to comply with any new requirements arising from Data Protection Regulation, throughout the term of the Agreement, provided that they are not degraded.
- 5.3.** Brevo shall notify Customer of any personal data breach within the meaning of the GDPR within a maximum of seventy-two (72) hours of becoming aware of it. This notification shall be accompanied by any useful information to enable Customer, if necessary, to notify the breach to the competent supervisory authority. In the event of a personal data breach, Brevo undertakes to carry out all useful investigations into the breaches of the protection rules in order to remedy them as soon as possible and to reduce the impact of such breaches on the data subjects, at no additional cost to Customer. Brevo undertakes to inform Customer of its investigations on a regular basis. Brevo undertakes to actively collaborate with Customer to ensure that it is able to meet its regulatory and contractual obligations, at no additional cost to Customer. It is the sole responsibility of Customer, as the data controller, to notify the competent supervisory authority and, if applicable, the data subjects of the personal data breach.
- 5.4.** This Section is without prejudice to Customer's own obligations in terms of securing personal data.

6. SUB-PROCESSING

- 6.1. Customer grants a general sub-processing authorization to Brevo, to conduct specific processing activities under the Agreement. On the Effective Date, authorized sub-processors are detailed in the list accessible in Schedule 1 of this DPA.
- 6.2. Provided that Customer has subscribed to receive notifications via the [dedicated form](#), Brevo will notify Customer of any changes regarding the addition or replacement of other sub-processors at least ten (10) Business Days prior to the change to provide Customer with an opportunity to object for legitimate reasons relating to the protection of personal data. If Customer has a legitimate objection to the addition of a sub-processor and Brevo cannot reasonably find an alternative, it will notify Customer. Customer is entitled to terminate the affected Services, otherwise the Parties will cooperate to find a satisfactory solution. If Customer does not object within the said period, the relevant sub-processor may be instructed to process Customer's personal data.
- 6.3. Any sub-processor is required to comply with the obligations of the Agreement on behalf of and in accordance with the instructions of Customer. It is Brevo's responsibility to ensure that the sub-processor provides the same sufficient guarantees regarding the implementation of appropriate technical and organizational measures so that the processing meets the requirements of the Data Protection Regulation. If the sub-processor does not fulfil its obligations with respect to the protection of personal data, Brevo shall remain fully liable to Customer for the sub-processor's performance of its obligations.

7. TRANSFERS

- 7.1. Customer is hereby informed that Customer Data may be processed and is processed outside the European Economic Area by Brevo, its Affiliates or sub-processors for the purposes of the strict performance of the Services by Brevo in its capacity as data processor.
- 7.2. Brevo undertakes to provide an adequate level of protection for the Customer Data processed, in accordance with the requirements of the Data Protection Regulation including the Standard Contractual Clauses ("SCCs") and additional measures.
- 7.3. Where a transfer is made from the European Economic Area ("**Restricted Transfer**") to a country that does not benefit from a European Commission Adequacy Decision, the SCCs are incorporated into this DPA and apply to the transfer as follows:
 - Module Two applies where Customer is a controller and Brevo is a processor, and Module Three applies where Customer is a processor and Brevo is a sub-processor;
 - in clause 7, the optional docking clause does not apply;
 - in clause 9(a) of Modules Two and Three, option 2 applies, and the period of prior notification of subprocessor changes is defined in Section 6.2 of this DPA;
 - in clause 11(a), the optional wording does not apply;
 - in clause 17, option 1 applies and the applicable law is that of France;
 - in clause 18(b), disputes will be submitted to the courts of Paris, France;
 - Annex I of the SCCs is supplemented by the information set out in Schedule 3 of this DPA;
 - Annex II to the SCCs is supplemented by the information set out in Schedule 2 to this DPA; and
 - Annex III of the SCCs is supplemented by the information set out in the list of Sub-processors.
- 7.4. **Transfers from Switzerland.** Where a Restricted Transfer is made from Switzerland, the SCCs are incorporated into this DPA and apply to the transfer as modified in Section 7.3, except as follows:
 - in clause 13, the competent supervisory authority is the Swiss Federal Data Protection and Information Commissioner;
 - references to the "Member State" in the SCCs refer to Switzerland, and data subjects located in Switzerland may exercise and enforce their rights under the SCCs in Switzerland; and
 - references to the "General Data Protection Regulation", "Regulation (EU) 2016/679" and the "GDPR" in the SCCs refer to the Swiss Federal Act on Data Protection (as amended or replaced).
- 7.5. **Transfers from United Kingdom.** Where a Restricted Transfer is made from the United Kingdom, the International Data Transfer Addendum to the EU Commission Standard Contractual Clauses is incorporated into this DPA and applies to the Restricted Transfer. The UK International Data Transfer



Addendum is supplemented by the information set out in Section 7.3, the list of sub-processors (Schedule 1) and Schedule 3 of this DPA.

7.6. Specific Application of SCCs. The following conditions apply to the SCCs:

- Customer may exercise its audit rights under the SCCs as set out in Section 10 below.
- Brevo may appoint sub-processors under the SCCs as set forth in Section 6 above.
- Brevo may neither participate in, nor permit a sub-processor to participate in another Restricted Transfer unless the new Restricted Transfer is made in compliance with the Data Protection Laws and in accordance with the applicable SCCs or a legally compliant alternative transfer mechanism.
- If any of the provisions of this Section 7 are inconsistent with any of the provisions of the SCCs, the SCCs shall prevail.

8. DELETION OF PERSONAL DATA

- 8.1.** Brevo undertakes to destroy or anonymize Customer's personal data within an incompressible period of one hundred (100) days after the end date of the Agreement. It is the responsibility of Customer to make every effort to save and/or transfer its data to another medium of its choice within this period, in accordance with the terms and conditions specified in the Agreement.
- 8.2.** In the event that EU law or the law of a Member State requires the retention of Customer's personal data, Brevo will inform Customer of this obligation. Brevo undertakes to provide Customer, upon first request, with a certificate of deletion of Customer's personal data.
- 8.3.** At the end of the contractual relationship, Brevo may retain certain Customer Data for the purpose of improving its products and services in an anonymized or aggregated manner or to comply with applicable legal hosting obligations.

9. ASSISTANCE

Brevo undertakes to assist Customer in ensuring compliance with the obligations set forth in Articles 32 to 36 of the GDPR. It is specified that in the context of this assistance, certain measures requested by Customer may be subject to additional invoicing proportional to the time spent by Brevo's teams in handling Customer's request.

10. AUDIT

- 10.1.** Brevo undertakes to provide Customer with all the information necessary to demonstrate compliance with the obligations set forth in the Data Protection Regulation.
- 10.2.** Brevo undertakes to regularly test and evaluate the security measures in place. The results of such testing and evaluation will be documented in an audit report (the "**Report**"). Upon written request from Customer, Brevo shall provide Customer or the auditor appointed by Customer with a copy of the latest Report. Brevo will also provide Customer with any additional information it may require regarding the security measures in place to assist Customer in understanding the scope of such measures.
- 10.3.** Customer may order audits to be carried out on a documentary basis in order to ensure that the processing carried out by Brevo as a data processor is compliant, by sending Brevo a registered letter with acknowledgement of receipt, up to a limit of one (1) audit per year, with the exception of the period between 1 May and 1 September each year (the "**Non-Auditability Period**"). Brevo will have three (3) months to send Customer the requested documents. Confidential items entrusted to Brevo by other clients are not concerned by the audit of documents.
- 10.4.** Customer may conduct an audit, at most once (1) a year, to ensure compliance with the Data Protection Regulation of the processing operations carried out by Brevo as a data processor for the purposes of performing the Services under the conditions defined below:
- a) The audit must be preceded by a documentary audit under the conditions of Section 10.3 having revealed substantial points of non-conformity of Brevo;
 - b) Customer shall notify Brevo of its intention to have an audit performed with a minimum of thirty (30) calendar days by submitting a detailed audit plan outlining the proposed scope, duration



and start date of the audit. Brevo will review the audit plan and inform Customer of any concerns or questions (for example, any request for information that may violate Brevo's security and privacy policies). Brevo may object in exceptional and duly justified circumstances (e.g. other audits are being carried out at the same time) and the audit may not be postponed for more than one (1) month;

- c) The audit must be carried out outside the Non-Auditability Period;
- d) The audit will be conducted by an external auditor selected jointly by the Parties for its expertise, independence and impartiality and who is, in any event, not a competitor of Brevo;
- e) The auditor will be required to sign a confidentiality agreement;
- f) The auditor agrees to conduct the audit during business hours and without disrupting the operations of Brevo;
- g) Verifications may not relate to information or information systems over which Brevo does not have physical and/or logical control.
- h) An identical copy of the audit report will be provided to the Parties for their comments;
- i) The costs of the audit will be borne exclusively by Customer;
- j) Upon receipt of the report, Brevo will implement within a reasonable period of time the appropriate corrective measures to ensure compliance with the Data Protection Regulation.

10.5. The Report and information of Brevo collected during the audit or inspection operations shall be considered as Confidential Information and may only be used for the purpose of the audit and necessary corrective actions to the exclusion of any other use by Customer.

11. DATA PROTECTION OFFICER

Brevo has appointed a data protection officer who can be contacted by e-mail at dpo@brevo.com (with a copy of the CSM dedicated to Customer's account) and/or by post at the following address: Sendinblue/Brevo, DPO, 7 rue de Madrid, 75008 Paris (France).

SCHEDULE 1 – LIST OF SUB-PROCESSORS

Sub-Processor	Sub-Processed Activity	Registered Office	Server Location	Safeguards for the Transfer of Personal Data
Brevo Infrastructure Sub-Processors				
Google Cloud Platform (GCP)	Hosting	France	Belgium	EU-US Data Privacy Framework Standard Contractual Clauses and additional measures
Scaleway/Iliad	Hosting	France	France	N/A
OVH	Hosting	France	France	N/A
Hetzner Online GmbH	Hosting	Germany	Germany	N/A
Cloudflare	Content Delivery Network & WAF	USA	USA/EU	EU-US Data Privacy Framework Standard Contractual Clauses and additional measures
Zendesk	Ticketing/support tool	USA	EU/USA	BCR, Standard Contractual Clauses and additional measures: Data Centre Location Add-On

Datadog	Log monitoring & debugging	USA/EU	USA	EU-US Data Privacy Framework
Specific services Optional if Customer uses this specific service				
Looker (hosting on GCP)	Dashboards	USA	EU/USA	EU-US Data Privacy Framework Standard Contractual Clauses and additional measures
Integry	Integration with third-party software	USA	EU/USA	Standard Contractual Clauses and additional measures
Convrrt	Creation of customised landing pages	USA	USA	Standard Contractual Clauses and additional measures
Brevo Group				
Sendinblue GmbH Group company owned by Sendinblue	Customer Experience & Maintenance	Germany	Germany, France and Belgium	N/A
Silver Line LLC Group company owned by Sendinblue	Customer experience & Maintenance	India	France and Belgium	Standard Contractual Clauses and additional measures
Sendinblue Inc. Group Company owned by Sendinblue	Customer experience & Maintenance	USA	France and Belgium	EU/US Data Privacy Framework Standard Contractual Clauses and additional measures

Brevo

Sendinblue Canada Inc. Group company owned by Sendinblue	Customer experience & Maintenance	Canada	France and Belgium	Adequacy Decision
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SCHEDULE 2 – TECHNICAL AND ORGANIZATIONAL MEASURES

	Confidentiality	Implementation of the Measure
1.	Access control Unauthorized persons must be prevented from accessing the data processing systems with which personal data is processed.	- Access to office premises is only permitted to authorized persons or accompanied, - Office access control system using keys (door security, entry only with a key, documented allocation of keys), - Confidential documents are stored exclusively under lock and key in secure cupboards.
2.	Access control To prevent data processing systems from being used by unauthorized persons.	- Use of state-of-the-art encryption procedures, - Password protection procedures and mandatory use of an online password manager, - Password change using a strong password and a 90-day cycle, - Two-factor authentication, - Personal and individual User ID when logging on to the system or corporate network, - Requirement to lock work devices, remote lock MDM software in place, - Creation of a user file for each user, - Access to servers limited by IP, - Concept of authorization for all digital access.
3.	Access control To guarantee that persons authorized to use a data processing system can only access the personal data to which they have been granted access and that this data cannot be read, copied, modified or deleted without authorization during processing.	- authorization and access rights granted on request, - documentation of events (logs), - regular evaluation of log files, - 24/7 automated log monitoring, - Use of state-of-the-art encryption methods.

	Integrity and Encryption	Implementation of the Measure
4.	Flow control It must be ensured that personal data cannot be read, copied, modified or deleted without authorization during electronic transmission or during transport or storage on data media, and that it is possible to verify and determine to which entities personal data are intended to be transmitted by data transmission equipment.	- Password protection of individual documents with separate password transmission, - VPN tunnel, - firewall, - protection against viruses, - creation of a register of processing activities in accordance with Art. 30 Para. 2 of the GDPR, - proof of dispatch - inventory of data carriers, - and in the event of subsequent verification: logging of personal data flows to third parties.
5.	Control of entries Care must be taken to ensure that it is possible to check and establish retrospectively whether and by whom personal data has been entered into data processing systems, modified or deleted.	The tracking or documentation of data management is ensured by logging systems.
	Availability and resilience	Implementation of the Measure
6.	Control of incoming downloads Ensure that personal data is protected against accidental destruction or loss.	- daily backup procedure, - hard disk mirroring at sub-processor level (RAID procedure), - uninterruptible power supply (UPS) at sub-processor level, - firewall and virus protection at processor and sub-processor level, - emergency plan, - fire alarm system.
	Confidentiality	Implementation of the Measure

7.	Control of separation Personal data collected for different purposes must be processed separately.	- multi-client capability of Brevo software, - separation of functions between production and testing, - development and test systems work exclusively with test data.
8.	Control of orders It must be ensured that personal data processed on behalf of the controller can only be processed in accordance with the controller's instructions.	- delimitation of roles between controller and processor, - clear definition of instructions, - regulation of the use of subcontractors, - obligation of employees to maintain data confidentiality, - appointment of a data protection officer, employee training on compliance with data protection legislation and data security.

SCHEDULE 3 – DESCRIPTION OF THE TRANSFER OF PERSONAL DATA

A. LIST OF PARTIES

- Data Exporter(s): Brevo
 - Name: Sendinblue SAS
 - Address: legal address of Sendinblue SAS
 - Contact person's name, position and contact details: CSM Brevo
 - Activities relevant to the data transferred under these Clauses: Processing of personal data for the purpose of providing, maintaining and improving the Services.
 - Signature and date: The Parties agree that execution of the General Terms and Conditions and the DPA constitutes execution of this Schedule by both Parties.
 - Role (controller/processor): processor, or as the case may be sub-processor.
- Data Importer(s): sub-processor listed in Schedule 1 of this DPA.
 - Name: as listed in Schedule 1 of this DPA.
 - Address: as listed in Schedule 1 of this DPA.
 - Contact person's name, position and contact details: online contact form.
 - Activities relevant to the data transferred under these Clauses: Processing of personal data for the purpose of providing, maintaining and improving the Services.
 - Signature and date: The Parties agree that execution of the General Terms and Conditions and the DPA constitutes execution of this Schedule by both Parties.
 - Role (controller/processor): sub-processors.

B. DESCRIPTION OF TRANSFER

- Categories of data subjects whose personal data is transferred: as described in Section 2 of the DPA and, where applicable, as specified in the applicable Additional Terms.
- Categories of personal data transferred: as described in Section 2 of the DPA and, where applicable, as specified in the applicable Additional Terms.
- No sensitive data is transferred, unless otherwise specified in a Purchase Order signed by Customer.
- Frequency of the transfer: continuous basis.
- Nature of the processing: as described in Section 2 of the DPA and, where applicable, as specified in the applicable Additional Terms.
- Purpose(s) of the data transfer and further processing: to enable Brevo to provide, maintain and improve the Services provided to Customer under the Agreement.
- The period for which the personal data will be retained, or, if that is not possible, the criteria used to determine that period: as described in Section 2 of the DPA and, where applicable, as specified in the applicable Additional Terms.
- For transfers to (sub-) processors, also specify subject matter, nature and duration of the processing: as described in Schedule 1 of the DPA.

C. COMPETENT SUPERVISORY AUTHORITY

The French supervisory Authority ("Commission Nationale de l'Informatique et des Libertés" or "CNIL") or any other authority as designated by Section 7 of the DPA, or by the Data Protection Regulation.